



CHAPTER 57.

An Act to provide for the appointment of a Keeper of the Registers of Scotland and of a Keeper of the Records of Scotland, the transference to such Keepers of the powers and duties of the Keeper of the Registers and Records of Scotland and the discontinuance of that office; to amend the law and procedure regarding registration in the General Register of Sasines and for purposes connected with the aforesaid purposes.
[30th July 1948.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) It shall be lawful for the Secretary of State with the consent of the Lord President of the Court of Session to appoint (a) a Keeper of the Registers of Scotland, and (b) a Keeper of the Records of Scotland, and on such appointments being made the office of Keeper of the Registers and Records of Scotland shall cease to exist.

(2) There shall be transferred to and vested in the Keeper of the Registers of Scotland the whole functions of the Keeper of the Registers and Records of Scotland with regard to the framing of the General Register of Sasines, the Register of Hornings, the Register of Inhibitions and Adjudications, the Register of Entails and the Register of Deeds, together with the powers and duties transferred to the said Keeper from the Director of Chancery under section seven of the Reorganisation of Offices (Scotland) Act, 1928.

(3) There shall be transferred to and vested in the Keeper of the Records of Scotland, the whole functions of the Keeper of the Registers and Records of Scotland with regard to the preservation of the public registers, records and rolls of Scotland.

(4) The Secretary of State may, to such number as the Treasury may sanction, appoint such officers and servants as he may deem necessary to enable each of the Keepers appointed under this section to perform the functions vested in him, and the persons employed at the date when this section comes into operation in the office of the Keeper of the Registers and Records of Scotland shall, subject to any direction of the Secretary of State, be transferred and attached—

(a) in the case where they were employed at the said date in connection with functions transferred under subsection (2) of this section, to the Keeper of the Registers of Scotland ; and

(b) in any other case, to the Keeper of the Records of Scotland,

and the persons so transferred and attached shall perform such duties in relation to the functions transferred to the said Keepers as the Secretary of State may direct.

(5) There shall be paid out of moneys provided by Parliament to each of the Keepers appointed under this section, and to the officers and servants appointed or transferred under subsection (4) of this section, such remuneration as the Treasury may, on the application of the Secretary of State, from time to time determine.

(6) In the event of a vacancy in the office of either of the Keepers appointed under this section or in the absence of either of them from any cause his functions shall be performed by such member of his staff or such other person as may be authorised by the Secretary of State.

(7) Any reference in any enactment to the Keeper of the General Register of Sasines shall be construed as a reference to the Keeper of the Registers of Scotland, and any reference in any enactment to the Keeper of the Registers and Records of Scotland shall be construed as a reference to the Keeper of the Registers of Scotland or to the Keeper of the Records of Scotland according as the enactment relates to the functions specified in subsection (2) or in subsection (3) of this section.

(8) This section shall come into operation on the first day of the month next succeeding the expiry of three months from the passing of this Act.

2. The following provisions shall have effect with regard to the recording of writs in the General Register of Sasines—

Provisions as
to recording
in Register of
Sasines.

- (a) the names and designations of the presenters of writs shall not be entered in the minute book ;
- (b) each page of the minute book shall be signed by the Keeper of the Registers of Scotland or by a deputy duly authorised by him in that behalf, and no further signature shall be necessary for the authentication of the minute book ; and in particular it shall not be necessary that the minute book be signed by the presenter of a writ or in the case of a writ transmitted to the Register by post by a clerk in the office of the said Keeper ;
- (c) the transmission in accordance with section ten of the Land Registers (Scotland) Act, 1868, of copies of printed abridgments or minutes and indexes to sheriff clerks shall be discontinued and that section shall cease to have effect.

31 & 32 Vict.
c. 64.

3. Section six of the Land Registers (Scotland) Act, 1868, shall be amended by the substitution for the words from "attach to his signature" to "and thereafter" of the words "stamp the words 'by post' in the presentment book and thereafter enter."

Amendment of
31 & 32 Vict.
c. 64. s. 6.

4. The Court of Session may, by Act of Sederunt, make provision with regard to the General Register of Sasines,—

Power to make
Acts of
Sederunt
regarding the
Register of
Sasines.

- (a) prescribing the forms to be used for the purposes of entries in the presentment books, minute books and relative indexes, prescribing the forms of rubrics and preambles in the register volumes, of certificates of recording to be endorsed on writs, of extracts to be issued, and generally of any documents required for the purposes of the Register, and the persons by whom any such documents shall be signed ;
- (b) requiring that in such cases and subject to such conditions as may be prescribed, where reference is made in a writ presented for recording in the Register to a writ previously recorded therein, the reference shall specify, as well as the date of such previous recording, the register volume and folio in which the writ is so recorded ;
- (c) for the transmission, at such time or times as may be prescribed, to the Keeper of the Records of Scotland, of the register volumes, presentment books, abstracts, indexes or copies thereof, and any other documents (or copies) prepared or kept for the purposes of the register.

Disposal of records which might have been transmitted to Keeper.

1 Edw. 8. &
1 Geo. 6. c. 43.

5. Any regulations made under section twelve of the Public Records (Scotland) Act, 1937 with regard to the disposal of records transmitted to the Keeper of the Records of Scotland, shall apply to records which could competently have been transmitted to the said Keeper under section five of the said Act or otherwise if the Keeper and the body or person having the custody of the records so agree.

Interpretation.

6. In this Act, unless the context otherwise requires—
the expression “ functions ” includes powers and duties ;
the expressions “ minute book ” “ presentment book ” and
“ register volume ” have the like meanings as in the
Land Registers (Scotland) Act, 1868.

Short title
and repeal.

7.—(1) This Act may be cited as the Public Registers and Records (Scotland) Act, 1948.

(2) The enactments set forth in Parts I and II of the Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

SCHEDULE.

Section 7.

ENACTMENTS REPEALED.

PART I.

ACT OF THE PARLIAMENT OF SCOTLAND.

Year and Chapter.	Subject matter or Title.	Extent of Repeal.
1693 c. 23 ...	Registers of Sasines Reversions, etc.	The words "and the names and designations of the persons by whom" and the words "immediately signed by the presenter of the writ and also by the Keeper, and" so far as relating to the Register of Sasines.

PART II.

ACTS OF THE UNITED KINGDOM PARLIAMENT.

Session and Chapter.	Short Title.	Extent of Repeal.
31 & 32 Vict. c. 64.	The Land Registers (Scotland) Act, 1868.	Sections ten, twenty and twenty-four.
42 & 43 Vict. c. 44.	The Lord Clerk Register Act, 1879.	Section eight (except the proviso thereto).
18 & 19 Geo. 5. c. 34.	The Reorganisation of of Offices (Scotland) Act, 1928.	Section five.

CH. 57.

Public Registers and Records 11 & 12 Geo. 6.
(*Scotland*) Act, 1948.

To be purchased directly from H.M. STATIONERY OFFICE at the following addresses:
York House, Kingsway, London, W.C.2 ; 13a Castle Street, Edinburgh, 2 ;
39-41 King Street, Manchester, 2 ; 1 St. Andrew's Crescent, Cardiff ;
Tower Lane, Bristol 1 ; 80 Chichester Street, Belfast
OR THROUGH ANY BOOKSELLER

Price 2d. net

(72380)

Criminal Justice Act, 1948

II & 12 GEO. 6. CH. 58.

ARRANGEMENT OF SECTIONS.

PART I.

POWERS AND PROCEEDINGS OF COURTS.

Abolition of penal servitude, hard labour, prison divisions and sentence of whipping.

Section.

1. Abolition of penal servitude, hard labour and prison divisions.
2. Abolition of sentence of whipping.

Probation and discharge.

3. Probation.
4. Probation orders requiring treatment for mental condition.
5. Discharge, amendment and review of probation orders.
6. Breach of requirement of probation order.
7. Absolute and conditional discharge.
8. Commission of further offence.
9. Probation orders relating to persons residing in Scotland.
10. Scottish probation orders relating to persons residing in England.
11. Supplementary provisions as to probation and discharge.
12. Effects of probation and discharge.

Fines and recognizances.

13. Power to fine on conviction of felony on indictment.
14. Powers of courts of assize and quarter sessions in relation to fines and forfeited recognizances.
15. Incidental provisions as to fines and forfeited recognizances.

Powers relating to young offenders.

16. Restriction on sentence of death.
17. Restriction on imprisonment.
18. Detention in a detention centre.
19. Attendance at an attendance centre.
20. Borstal training.

Powers relating to persistent offenders.

21. Corrective training and preventive detention.
22. Power to order certain discharged prisoners to notify address.
23. Proof of previous convictions etc. for purposes of ss. 21 and 22.

Reception orders.

Section.

24. Power to make reception order.

Adjournment, remand, etc.

- 25. Power of courts of summary jurisdiction to adjourn a case after conviction and before sentence.
- 26. Remand for inquiry into physical or mental condition.
- 27. Remand and committal of persons under 21.

Offences punishable on summary conviction or on indictment.

- 28. Procedure in respect of offences punishable on summary conviction or on indictment.
- 29. Committal for sentence in respect of indictable offences tried summarily.

Miscellaneous provisions relating to procedure, appeals, evidence, etc.

- 30. Abolition of privilege of peerage in criminal proceedings.
- 31. Jurisdiction and procedure in respect of certain indictable offences committed in foreign countries.
- 32. Issue of single summons on more than one information.
- 33. Supply of copies of informations to persons committed for trial.
- 34. Amendment of Summary Jurisdiction (Appeals) Act, 1933.
- 35. Challenge of jurors and separation of juries.
- 36. Appeals from courts of summary jurisdiction to quarter sessions.
- 37. Bail on appeal, case stated or application for certiorari.
- 38. Amendment of Criminal Appeal Act, 1907.
- 39. Proof of previous convictions by finger-prints.
- 40. Taking of finger-prints by order of justices.
- 41. Evidence by certificate.
- 42. Order of speeches.
- 43. Reports of probation officers.
- 44. Payment of costs of defence on acquittal, etc.

PART II.

ADMINISTRATIVE PROVISIONS AND PROVISIONS AS TO TREATMENT
OF PRISONERS, ETC.*Arrangements for probation.*

- 45. Probation areas, probation committees and case committees, and probation officers.
- 46. Approved probation hostels and homes.
- 47. Inspection of institutions for residence of probationers.

Institutions for offenders.

Section.

48. Remand centres, detention centres and Borstal institutions.
49. Remand homes.
50. Acquisition of land for prisons and other institutions.
51. Abolition of office of directors of convict prisons and application of Prison Acts to convict prisons.

Rules for management of prisons, etc.

52. Rules for the management of prisons, remand centres, detention centres, attendance centres and Borstal institutions
53. Constitution and functions of visiting committees and boards of visitors.
54. Corporal punishment in prisons.
55. Amendment of Prison Act, 1865, as to introduction of prohibited articles.

Remission for good conduct and release on licence.

56. Remission for good conduct and release on licence of young prisoners.
57. Release on licence of persons serving imprisonment for life.

Removal and transfer to and from prisons and other institutions.

58. Temporary detention of persons liable for detention in a Borstal institution.
59. Transfers from prison to Borstal institution and vice versa.
60. Removal of prisoners etc. for judicial and other purposes.
61. Removal of prisoners, etc., to and from Scotland and from the Isle of Man or Channel Islands.

Treatment of persons of unsound mind and mental defectives.

62. Discontinuance of terms "criminal lunatic" and "criminal lunatic asylum."
63. Removal of Broadmoor patients, etc.
64. Treatment of persons transferred from prisons, etc. to institutions for mental defectives.

Miscellaneous.

65. Persons unlawfully at large.
66. Legal custody.
67. Arrest on failure to surrender to bail before courts of summary jurisdiction.
68. Restriction of power to arrest without warrant under 5 Geo. 4. c. 83.
69. Commutation of death sentence to sentence of imprisonment.
70. Amendments of Forfeiture Act, 1870.

Section.

71. Amendment of s. 71 of the Children and Young Persons Act, 1933.
 72. Powers of court in relation to absconders from approved schools, etc.

PART III.

SUPPLEMENTAL.

73. Application of ss. 1 and 2 to courts-martial.
 74. Application to supervision orders of certain provisions relating to probation.
 75. Power to order detention in a remand centre under s. 67 of the Children and Young Persons Act, 1933.
 76. Rules and orders.
 77. Expenses and grants payable out of moneys provided by Parliament.
 78. Transitory provisions.
 79. Consequential and minor amendments.
 80. Interpretation.
 81. Application to Scotland.
 82. Application to Northern Ireland.
 83. Short title, commencement and repeals.

SCHEDULES :

First Schedule.—Discharge and Amendment of Probation Orders.

Second Schedule.—Borstal Training.

Third Schedule.—Release on Licence of Persons Sentenced to Corrective Training or Preventive Detention.

Fourth Schedule.—Registration of Address and Reporting at Police Stations by Discharged Prisoners.

Fifth Schedule.—Administrative Provisions as to Probation.

Sixth Schedule.—Release of Young Offenders from Prison on Licence.

Seventh Schedule.

PART I—Provisions relating to Persons in England after Discharge from Prisons, etc., in Scotland.

PART II—Provisions relating to Persons in Scotland after Discharge from Prisons, etc., in England.

Eighth Schedule.—Transitory Provisions.

Ninth Schedule.—Consequential and Minor Amendments.

Tenth Schedule.—Enactments Repealed.

PART I—Repeals extending to England only.

PART II—Repeals extending to Scotland.

PART III—Repeals extending to Scotland and Northern Ireland.